

TENTATIVE RULING(S) FOR AUGUST 3, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2423598

JEANETTE MILLER-JOHNSON, et al. VS GLORIA MANAGEMENT, et al.

TENTATIVE RULING(S):

Before the Court is Plaintiffs' motion to compel deposition answer of Defendant Woodbury to three deposition questions. Woodbury opposes on the basis that Plaintiffs never met and conferred as to the three questions that Plaintiffs now demand responses to in their motion. Plaintiffs reply.

Parties Arguments

At the deposition on January 27, 2026, Plaintiffs' counsel questioned Woodbury about what appears to be a redacted document asking "... can you clarify what's been redacted here?". Given the single page of the deposition transcript provided, the nature of the document is unclear, though it may relate to shareholder rights. Woodbury's counsel instructed Woodbury not to provide a response as to what the redaction

contained. The transcript does not note any evidentiary objections, rather just an instruction from Woodbury's counsel not to respond. (Greiner Decl. ¶ 2-7; Ex. 1, p 43.) There were two other instances in his deposition where Woodbury's counsel instructed Woodbury not to provide an answer.

The second question inquired whether Woodbury voted in favor of "exploring all capital raise options." Woodbury's counsel objected based on irrelevance and privacy, and instructed Woodbury that he does not "have to answer how [he] voted on anything." (Greiner Decl. ¶ 8; Ex. 1, p 47.)

The third question inquired about when the winding down of Bay View Farms began, asking "Is it fair to say that that's the commencement of winding down?" Again, Plaintiffs only provided a single page of the deposition transcript in support of their motion, which does not provide a sufficient background.^[1] (Greiner Decl. ¶ 8; Ex. 1, p 126.) In response, Woodbury's counsel objected stating that the question was argumentative and that the term "winding down" called for a legal conclusion and that Woodbury was not competent to answer. He instructed Woodbury not to answer. (*Ibid.*)

On March 11, 2026, six weeks after the deposition, Plaintiffs' counsel sent a meet and confer letter by e-mail. The letter referenced that Woodbury testified that he was aware of the redacted names of the recipients who received payments from an approximate \$1.75 million insurance settlement received by Glorietta as referenced in the April 21, 2023, corporate meeting minutes, but that Woodbury's counsel instructed him not to answer during the deposition. (Greiner Decl. ¶ 11; Ex. 2.)^[2]

Plaintiffs demanded that Woodbury provide an unredacted copy of the April 21, 2023, corporate minutes (which lists the names of the individuals who received part of the Glorietta's insurance settlement) or a privilege log for all the redaction documents provided; however, the e-mail does not specify what other

^[1] Plaintiff has failed to comply with Code of Civil Procedure 2025.480, subdivision (h), which provides for "Not less than five days prior to the hearing on this motion, the moving party shall lodge with the court a certified copy of **any parts of the stenographic transcript of the deposition that are relevant to the motion...**" (Emphasis added.) The portions provided are insufficient to understand the context of the questions.

^[2] Exhibit 3 of Plaintiffs' counsel's declaration contains a May 12, 2023, e-mail with redacted names and references a settlement agreement. It is unclear if this is the same document as the April 21, 2023, minutes that is discussed in the motion or is a separate document.

redacted documents counsel is referring to. The letter also demanded that Woodbury be made available for a “limited continuation regarding the redacted subject matter.” There is no reference to the three deposition questions that are the subject of this motion. (*Ibid.*)

Woodbury’s counsel’s letter dated March 12, 2026, points this out. The letter reminds Plaintiffs’ counsel that during the deposition, in response to the question of whether Woodbury was aware of the names of the recipients who received payments from an approximate \$1.75 million insurance settlement received by Glorietta, as noted in the April 21, 2023 board meeting minutes, Plaintiff’s counsel only asked Woodbury if Woodbury was aware of the redacted names. In fact, Plaintiff’s counsel specifically instructed Woodbury that “Yeah. You don’t have to tell [the names] to me. Are you aware of who they are?” (Hout Decl. ¶¶ 7-8, Ex. 2,4.) Interestingly, this part of the deposition occurred after the three incidents that Plaintiffs cite to as the basis of their motion.

Furthermore, Woodbury asserts that any issues with document redactions, which were part of Glorietta’s responses to a request for production served in September 2025, should have been followed up with a meet and confer in response to *that* production, given that Woodbury was not required to produce any documents at his deposition. (*Id.* ¶ 9; Ex. 1,4.) After the exchange, there was no other communication between the parties regarding concerns with Woodbury’s deposition. (*Id.* ¶ 10.)

But at some point, Woodbury offered to provide verified answers to the questions that are the subject of this motion. Plaintiffs’ reply does not address their reasoning for not accepting. However, Woodbury asserts that it was rejected because Plaintiffs demanded that Woodbury also agree to produce all of Glorietta unredacted bank statements, which he was never requested to produce. (Opp. p 3, lns. 1-2; p. 12, lns. 17-20.)

DISCUSSION

Timeliness

Section 2025.480, subd. (a) states that “[i]f a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Such a motion shall be no later than 60 days after the completion of the deposition and shall include a meet and confer declaration under Section 2016.040. (Section 2025.480, subd. (b).)

The meet and confer is discussed below. The motion was filed on March 27, 2026, within 60 days after the completion of the January 26, 2026 deposition. The motion is timely.

Meet and Confer

The meet and confer declaration “shall state facts showing a **reasonable and good faith** attempt, either **in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” (Code of Civil Procedure^[3] 2016.040, subd. (a).)(Emphasis added.)

Here, neither parties’ declaration shows that a code compliant meet and confer occurred. The only evidence of an exchange between the parties is the March 11, 2026, letter sent by Plaintiffs’ counsel, which Defendant’s counsel replied to. (Greiner Decl. ¶ 11; Ex. 2; Hout Decl. ¶¶ 7-8, Ex. 4.)

Plaintiffs’ meet and confer letter does not discuss the three questions that are the subject of Plaintiffs’ motion. Instead, it concerns regarding a fourth line of questioning (which from the excerpts of the transcripts provided, appear to show that Plaintiffs’ own counsel informed Woodbury that he does not need to provide a response to) and a document production that was provided by another Defendant that was past the statutory time to move to compel further on. (*Ibid.*) This is not a reasonable and good faith meet and confer. Furthermore, the parties did not meet and confer occur “in person, by telephone, or by videoconference” as specifically stated by Section 2016.040, subdivision (a).

^[3] All further citations are to Code of Civil Procedure unless otherwise noted.

In addition, Woodbury offered to resolve the dispute by providing verified responses to the three questions that are the basis of Plaintiffs motion, which offers a reasonable resolution under the circumstances.

Therefore, rather than continuing the motion for a proper meet and confer, the Court orders Woodbury to provide verified responses within 30 days.

Sanctions

Plaintiffs seek monetary sanctions in the amount of \$13,760.00 and Woodbury seeks \$5,000. The notice for Plaintiff's motion is silent as to whom it sought sanctions against. Under section 2030.240, the notice of motion must specify against whom sanctions are sought. Given the fact that Plaintiffs have failed to provide proper notice, their motion for sanctions is defective. Furthermore, parties failed to meet and confer prior to the filing of the motion.

As for Woodbury's request, given that Woodbury offers to provide verified responses, Woodbury concedes responses are warranted. Based on this record, the Court DENIES both parties' request for sanctions.

RULING

For all the reasons set forth above, the Court rules as follows:

- (1) The Court **ORDERS** Defendant Woodbury to provide code-compliant verified responses to the three questions identified in Plaintiffs separate statement, within 30 days.
- (2) The Court DENIES both parties' request for sanctions.